

SUPERIOR COURT OF CALIFORNIA
COUNTY OF VENTURA

Tentative Ruling

2025CUBC056420: HARALAMBOS VLAVIANOS vs BMW OF NORTH AMERICA LLC
08/20/2026 in Department 44

Motion to Compel Further Discovery Responses to Requests for Admission Set One

Department Rules. Parties and counsel shall follow the Department 44 rules and Zoom protocols, available at <https://www2.ventura.courts.ca.gov/Courtroom/C44>.

Remote Appearances. The Court allows Zoom appearances as a courtesy to parties and counsel. The Court does not accommodate Court Call appearances. **You MUST register by 3:00 p.m. the court day before your hearing or you will be DENIED entry to the hearing:**

ZOOM Registration Link:

<https://ventura-courts-ca.zoom.us/meeting/register/iqN7uhQSQMuoQs-9TQXgEQ>

No advance notice is required to appear in person.

Tentative Rulings. Oral argument should address the tentative decision. To submit on the tentative decision, email courtroom44@ventura.courts.ca.gov before 8:00 a.m. on the hearing date, copying all other parties. Use the subject line “SUBMISSION ON TENTATIVE”, [Case Number], [Case Title] and [Party]. If not all parties submit, the hearing will proceed, and the tentative ruling may change.

The Court may adopt, modify or reject the tentative ruling after hearing. The tentative ruling has no legal effect unless and until adopted by the Court.

Motion: Plaintiffs’ Motion to Compel Further Responses to Requests for Admission, Set One; Special Interrogatories, Set One; and Requests for Production of Documents, Set One (*Opposed*)

Tentative Ruling:

Plaintiffs’ Motion to Compel Further Responses to Requests for Admission, Set One; Special Interrogatories, Set One; and Requests for Production of Documents, Set One is CONTINUED to **October 22, 2026 at 8:20 a.m.**

Before the continued hearing:

1. Plaintiffs shall pay any additional filing fees required for the three discovery motions pursuant to Government Code § 70617. If Plaintiffs paid only one motion fee, Plaintiffs shall pay the additional fees attributable to the other two discovery motions.
2. Plaintiffs shall file and serve a corrected Separate Statement, organized by discovery device, that complies fully with California Rules of Court, rule 3.1345(c), including the complete text of each discovery request at issue, BMW’s complete response and objections

to that request, and the factual and legal reasons supporting a further response as to each request.

3. Plaintiffs shall file and serve a supporting memorandum complying with the page limitations of California Rules of Court, rule 3.1113.

4. If Plaintiffs continue to seek monetary sanctions, they shall submit a declaration identifying the actual monetary expenses incurred as a result of the conduct at issue. Plaintiffs may not seek compensation for the value of their own time spent litigating the discovery dispute.

Defendant may file a supplemental opposition addressing the corrected papers, and Plaintiffs may file a supplemental reply, in accordance with the applicable filing deadlines.

The Court DEFERS ruling on the merits of the individual discovery requests and on Plaintiffs' request for monetary sanctions until the continued hearing.

BMW of North America, LLC is ordered to give notice.

I. Background

A. Factual Background

Plaintiffs Haralambos and Tyla Vlavianos purchased a used 2021 BMW X5 45e hybrid vehicle in July 2024. Plaintiffs allege recurring hybrid-system and related defects and contend that the vehicle was repeatedly presented to authorized BMW dealerships for warranty repairs.

Plaintiffs filed the original Complaint on December 17, 2025, and the operative First Amended Complaint ("FAC"), on April 6, 2026. The FAC alleges causes of action relating to breach of express warranty, violation of the Song-Beverly Consumer Warranty Act, failure to repair after a reasonable number of attempts, and breach of statutorily mandated TZEV/hybrid warranty obligations.

BMW filed a Verified Answer on May 8, 2026. Among other defenses, BMW alleges lack of standing, failure to give notice and an opportunity to cure, unreasonable or unauthorized use, misuse or lack of maintenance, business use, equitable estoppel, and estoppel/laches/lack of good faith. The Answer was verified by BMW Technical Field Analyst Travis Brown, who states that the information in the Answer was assembled by BMW employees and counsel.

B. Procedural Background

On May 6, 2026, the Court denied Plaintiffs' request for a preliminary injunction requiring, among other things, authorization of repairs, waiver of storage or diagnostic charges, and provision of a replacement vehicle, finding Plaintiffs had an adequate remedy at law.

On May 11, 2026, Plaintiffs served BMW with Requests for Admission (“RFAs”), Set One, Special Interrogatories (“SIs”), Set One, and Requests for Production (“RPDs”), Set One. BMW served responses to all three sets on June 12, 2026. BMW’s service email represented that verifications would follow separately, but Plaintiffs declare that no verifications were thereafter received.

Plaintiffs thereafter sent a detailed meet-and-confer correspondence identifying asserted deficiencies and requesting supplemental responses. Plaintiffs filed the present motion on June 24, 2026.

On July 30, 2026, the Court denied Plaintiffs’ motion for summary judgment or summary adjudication. The Court found triable issues regarding, among other things, the number and nature of repair attempts and whether repairs were successful. The Court further found that the extent to which *Rodriguez v. FCA US, LLC* (2024) 17 Cal.5th 189 may bar Plaintiffs’ first three causes of action remained unresolved.

BMW filed its opposition on August 7, 2026. Plaintiffs filed their reply on August 11, 2026. No further filings have been made.

II. Preliminary Matters

A. Service and Notice

Service and notice appear proper. Plaintiffs electronically served the motion and Separate Statement on BMW’s counsel on June 24, 2026, for the August 20, 2026 hearing. The proof of service identifies BMW’s primary service email and counsel’s additional email addresses and states that no notice of unsuccessful transmission was received. BMW does not contend that it lacked notice of the motion and timely filed an opposition.

B. Meet and Confer

A motion to compel further responses to interrogatories, inspection demands, or RFAs must be accompanied by a declaration demonstrating a reasonable and good-faith attempt to resolve each disputed issue informally. (Code Civ. Proc. §§ 2016.040, 2030.300(b), 2031.310(b), 2033.290(b).)

BMW argues Plaintiffs did not adequately meet and confer because BMW served its responses on June 12, Plaintiffs sent one letter on June 15, and Plaintiffs filed the motion on June 24. BMW relies on *Obregon v. Superior Court* (1998) 67 Cal.App.4th 424.

The record does not support BMW’s characterization of Plaintiffs’ effort as merely a “single brief letter.” Plaintiffs’ correspondence identified the asserted problems with each of the three discovery devices and requested supplemental responses. Plaintiffs’ declaration states BMW did not provide supplemental responses resolving those disputes.

Obregon holds that adequacy of the meet-and-confer effort depends on the circumstances, including the complexity and scope of the discovery, litigation history, nature of the parties' interaction, and prospects for informal resolution. Even where the effort is insufficient, outright denial is not automatically required; the court must consider an appropriate remedy. (*Obregon*, *supra*, at 431-436.)

On balance, the meet-and-confer effort does not warrant continuance of the motion. The parties are ordered to further meet and confer within 10 days to discuss whether any deficiency can be cured, and to file a supplemental declaration detailing their meet and confer efforts at least 10 days in advance of the continued proceedings.

C. Omnibus Motion and Filing Fees

Plaintiffs seek three distinct discovery orders in one filing: further RFA responses under Code Civ. Proc. § 2033.290, further interrogatory responses under Code Civ. Proc. § 2030.300, and further RPD responses under Code Civ. Proc. § 2031.310. Although no cited statute expressly states that these discovery devices can never be addressed in one set of papers, each constitutes a separate statutory motion for relief.

Government Code § 70617 requires a \$60 filing fee for discovery motions and provides that the applicable filing fees apply separately to each motion regardless of whether the matters are heard together. (Gov. Code § 70617(a)(4), (f).)

The record before the Court does not establish how many motion fees Plaintiffs paid. The Court directs Plaintiffs to pay any additional filing fees required for the three discovery motions before reaching their merits. If only one \$60 motion fee was paid, two additional motion fees are due.

D. Separate Statement

This is the most significant procedural defect.

California Rules of Court, rule 3.1345(c) requires the Separate Statement to contain, for each disputed discovery request, the complete text of the request, the complete response or objection, and the factual and legal reasons supporting a further response. The statement must be self-contained so that the Court need not review another document to ascertain the full request and response.

Plaintiffs' Separate Statement states the text of the requests but summarizes BMW's responses rather than reproducing the complete response and objections. For example, the RFA entries state generally that BMW asserted a series of objections and then was "unable to admit or deny" the request, rather than setting forth the full response.

BMW is incorrect, however, insofar as it asserts that Plaintiffs did not provide BMW's actual discovery responses anywhere in the moving papers. Plaintiffs' supporting declaration expressly identifies true and correct copies of BMW's responses as Exhibit B. Nevertheless, attaching the complete responses elsewhere does not cure the defective Separate Statement. *Mills v. U.S. Bank*

(2008) 166 Cal.App.4th 871, 893, specifically rejected that approach and affirmed denial of a discovery motion where the separate statement abbreviated responses even though the complete responses were available elsewhere in the record.

Accordingly, the present Separate Statement is insufficient to permit orderly request-by-request adjudication. The Court should require a compliant Separate Statement before reaching the merits.

E. Excessive Memorandum

Except for summary judgment or summary adjudication motions, an opening memorandum may not exceed 15 pages without leave of court. (Cal. Rules of Court, rule 3.1113(d)-(e).) A memorandum exceeding the applicable limit is treated in the same manner as a late-filed paper. (Cal. Rules of Court, rule 3.1113(g).)

BMW correctly notes that Plaintiffs' memorandum exceeds the 15-page limitation. Plaintiffs are directed to file a compliant memorandum as part of the cure.